

Republic of the Congo 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in the Republic of the Congo during the year.

Significant human rights issues included credible reports of: arbitrary or unlawful killings; disappearances; torture or cruel, inhuman, or degrading treatment or punishment; arbitrary arrest or detention; serious restrictions on freedom of expression and media freedom, including violence or threats of violence against journalists and censorship; trafficking in persons, including forced labor; and significant presence of the worst forms of child labor.

The government took limited credible steps to identify and punish officials who committed human rights abuses, but enforcement was not consistent.

Section 1. Life

a. Extrajudicial Killings

There were reports from domestic human rights nongovernmental organizations (NGOs) and on social media the government or its agents committed arbitrary or unlawful killings during the year.

NGOs continued to report deaths resulting from abuse in police stations and pretrial detention centers. According to the Actions Center for Development (CAD), the year saw an increase in the number of deaths in custody. For example, in September, Jacques Miantsouba died in custody in a Pointe Noire police station following the accusation of burglarizing a Chinese company. In a widely circulated video, his wife reported she heard her husband screaming in pain while speaking with him by telephone. The government had not announced an official investigation by year's end.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

Section 2. Liberty

a. Freedom of the Press

The constitution and law provided for freedom of expression in all forms of communication and prohibited censorship, including for members of the press and other media, but the government did not always respect these rights.

Individuals could criticize the government publicly or privately but risked reprisal. The law criminalized speech that incited ethnic hatred, violence, or

civil war, punishable by no less than five years in prison. The law also punished any act that promoted racism or xenophobia with a sentence of two years.

Physical Attacks, Imprisonment, and Pressure

There were reports of direct and indirect intimidation of journalists by the government, including telephone calls from officials and anonymous persons warning journalists and news media not to broadcast videos of politically sensitive events or publish certain stories.

Censorship by Governments, Military, Intelligence, or Police Forces, Criminal Groups, or Armed Extremist or Rebel Groups

Media were required to register with a governmental regulatory council, and outlets that violated council regulations were subjected to financial sanctions or being shut down. The president appointed the director of the council.

Although newspapers published open letters written by government opponents, many journalists and editors of major newspapers and broadcast media practiced self-censorship.

b. Worker Rights

Freedom of Association and Collective Bargaining

The law provided for the right of workers to form and join independent unions, bargain collectively, and conduct legal strikes. The law prohibited antiunion discrimination and required reinstatement of workers dismissed because of union activity. The government generally did not effectively enforce laws protecting freedom of association, collective bargaining, and the right to strike. Penalties were commensurate with those for comparable violations; however, there were no reports the government applied penalties for violations. Formal labor complaints were rare due to workers' fear of reprisal.

Other than for members of the security forces and other services "essential for protecting the general interest," the law provided for workers to form and join unions of their choice without previous authorization or excessive requirements. The law provided for the right of unions to conduct their activities without interference.

The law provided for the Recommendations Committee, a government body, to intervene in labor disputes and recommend resolutions that became legally binding if the parties to the dispute did not challenge it within four days.

Workers had the right to strike, provided they exhausted lengthy and complex conciliation and nonbinding arbitration procedures and provided employers seven business days' advance notice. Solidarity strikes or strikes regarding political matters were unlawful. Participation in an unlawful strike could result in criminal prosecution and a prison sentence and forced labor. The government engaged in use of forced prison labor, including of prisoners held for participating in illegal strikes. By law peacefully occupying a work site also constituted serious misconduct. The law required the continuation of a minimum service in all public services as essential to protect the general interest, and workers' refusal to take part was considered gross misconduct. Some employers used subcontracting and short-term contracts to circumvent laws prohibiting antiunion discrimination.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

Workers in the public sector were accorded a national minimum wage that exceeded the poverty line, as did the minimum wage for private-sector employees. No official minimum wage existed in the agricultural or informal

sectors. The law provided for a standard workweek of 40 hours and provided for overtime pay. The law did not limit the maximum number of work hours per week, although it called for a minimum of 24 hours of time off per week.

Occupational Safety and Health

The Ministry of Labor set health and safety regulations that corresponded to international standards. Inspectors were trained on enforcement of compliance with wage, hour, and occupational safety and health (OSH) regulations. There were no known reports the government proactively identified unsafe conditions, nor of cases in which workers filed formal OSH complaints. Workers did not have the right to remove themselves from situations that endangered their health or safety without jeopardizing their employment. NGOs reported safety violations commonly occurred in commercial fishing, logging, and quarries, and at private construction sites.

Wage, Hour, and OSH Enforcement

The Ministry of Labor was responsible for enforcing the minimum wage law. Penalties for violations were commensurate with those for comparable violations; however, penalties were rarely applied against violators.

The government did not effectively enforce OSH laws. While health and safety regulations required biannual Ministry of Labor inspections of businesses, businesses reported the visits occurred much less frequently.

The size of the inspectorate was not sufficient to enforce compliance with the law. Penalties for noncompliance with OSH laws were not commensurate for similar crimes such as negligence and were rarely applied against violators, and generally in only the most egregious cases.

There were no existing credible data from the government, but international organizations estimated 65 percent of workers were employed in the informal sector. The government did not enforce labor laws in the informal sector.

c. Disappearance and Abduction

Disappearance

There were reports of enforced disappearances by or on behalf of government authorities. The online media outlet *Brazzanews* reported the disappearance on September 26 of TC 2000, the reputed leader of a youth gang called "the Americans," who was taken into police custody and declared dead a few days later.

Prolonged Detention without Charges

The constitution and law prohibited arbitrary arrest and detention and provided for the right of any person to challenge the lawfulness of their arrest or detention in court. The government generally did not observe these requirements.

There were credible reports authorities arrested detainees secretly and without judicial authorization.

There were credible reports authorities sometimes detained suspects incommunicado for extensive periods of time. Authorities generally did not observe the 72-hour maximum detention limit and frequently held detainees for several weeks before an attorney general freed or transferred them to a prison to await trial.

There were credible reports arbitrary arrests increased during the year. The NGO CAD reported the case of an elderly Rwandan refugee, Léonard Mbarusha, arbitrarily detained in a Brazzaville prison since 2015. He had reportedly been deprived of appropriate medical care, and his condition deteriorated significantly.

Lengthy pretrial detention was a problem, and between 60 and 75 percent of detainees in prison were pretrial detainees. Prison authorities stated the average length of pretrial detention for nonfelony cases was one to three months and 12 months or longer for felony cases. Human rights activists, however, stated the actual average was much longer for felony cases and sometimes exceeded the maximum sentence for the alleged crime.

Observers attributed lengthy pretrial detention to the judicial system's lack of capacity and a lack of political will to address the problem.

d. Violations in Religious Freedom

See the Department of State's *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution prohibited torture, and the law contained a general prohibition against assault and battery, but there was no legal provision specifically banning torture. There were credible reports from domestic human rights NGOs and on social media the government or its agents engaged in cruel, inhuman, or degrading treatment of detainees and convicted felons. On June 26, Agence France-Presse reported Roberto Lissassi alleged police abused him so severely while in custody in 2023 that he lost his eyesight.

Security forces frequently acted with impunity. Enforcement was

inconsistent and authorities generally did not prosecute or punish members of the security forces.

b. Protection of Children

Child Labor

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings/>.

Child Marriage

The legal minimum age for marriage was 18 for women and 21 for men. Underage marriage was legal with a judge's permission and with the permission of both sets of parents; the law did not specify a minimum age in such cases.

c. Protection to Refugees

The government cooperated with the Office of the UN High Commissioner for Refugees and other humanitarian organizations in providing protection and assistance to refugees, returning refugees, or asylum seekers, as well as other persons of concern.

Provision of First Asylum

The law provided for the granting of refugee status, and the government

had a system for providing protection to refugees and asylum seekers.

Resettlement

Former Rwandan refugees could obtain resident status provided they had a valid Rwandan passport.

d. Acts of Antisemitism and Antisemitic Incitement

There was a very small Jewish community. There were no known reports of antisemitic incidents.